

Jokhu Lal v. State of U.P.

Allahabad High Court · Division Bench · 18 November 2015 · Writ - C No. 62211 of 2015 · **Writ dismissed; relegated to Clause 6.5 or consumer forum**

HEADNOTE

A consumer dissatisfied with a bill of demand raised by the Electricity Department must challenge it under Clause 6.5 of the Electricity Supply Code, 2005 or before the Electricity Consumer Forum. The writ petition was dismissed without examining the bill.

FACTUAL SUMMARY

Jokhu Lal filed Writ-C No. 62211 of 2015 in the Allahabad High Court against the State of Uttar Pradesh and three others, being dissatisfied with a bill of demand raised by the Electricity Department. The Division Bench recorded no particulars of the supply, the billed amount, the billing period, or any prior objection to the licensee. Counsel for the parties were heard. The Court did not examine the demand on merits.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-objection-forum

HOLDING

If a consumer is not satisfied with a bill of demand raised by the Electricity Department, the challenge lies by an appropriate application under Clause 6.5 of the Electricity Supply Code, 2005, or before the Electricity Consumer Forum; a writ petition is not the forum and stands dismissed. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 A consumer dissatisfied with a bill of demand raised by the Electricity Department must challenge it under Clause 6.5 of the Electricity Supply Code, 2005 or before the Electricity Consumer Forum. The writ petition was dismissed without examining the bill. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE BILL OF DEMAND

The Court did not examine the bill on merits and relegated the petitioner to Clause 6.5 or the consumer forum. ¶ 1